

HOUSE No. 5343

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, April 9, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the petition (accompanied by bill, House, No. 4964) of Homar Gómez (by vote of the town) that the town of South Hadley be authorized to grant additional licenses for the sale of all alcoholic beverages in said town, reports recommending that the accompanying bill (House, No. 5343) ought to pass [Local Approval Received].

For the committee,

TACKEY CHAN.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of South Hadley to grant additional licenses for the sale of all alcoholic beverages.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws the
2 licensing authority of the town of South Hadley may grant: (i) 4 additional licenses for the sale
3 of all alcoholic beverages to be drunk on the premises pursuant to section 12 of said chapter 138;
4 and (ii) 2 additional licenses for the sale of all alcoholic beverages not to be drunk on the
5 premises pursuant to section 15 of said chapter 138 to establishments located within the 4
6 economic development zones described in subsection (b) upon approval of and under conditions
7 set by the licensing authority of the town of South Hadley. A license granted under this act shall
8 be clearly marked on its face either “Route 202 & 33”, “Village Commons”, “South Hadley
9 Falls”, or “Newton Street/Lyman Street” as applicable, and subject to all of said chapter 138
10 except said section 17.

11 (b) The licensing authority shall restrict the licenses authorized in this act to
12 establishments located with either the town’s: (i) “Route 202 & 33” district, (ii) “Village
13 Commons” district, (iii) “South Hadley Falls” district, or (iv) “Newton Street/Lyman Street”

district, as those areas are designated on a map entitled “South Hadley Zoning Map” produced by the town of South Hadley’s Clerk’s Office and dated February 19, 2026, a copy of which is on file in the office of the town clerk of the town of South Hadley.

(c) A license granted pursuant to clause (i) of subsection (a) shall only be exercised in the dining room of a common victualler and other such public rooms or areas as may be deemed reasonable and appropriate by the licensing authority as certified in writing.

(d) The licensing authority shall not approve the transfer of a license granted pursuant to this act to a location outside of its initial zoned area as described in clause (i), (ii), (iii), or (iv) of subsection (b), but it may grant such license to a new applicant within such initial zoned area if the applicant files with the licensing authority a letter from the department of revenue and a letter from the department of unemployment assistance indicating that the license is in good standing with those departments and that all applicable taxes, fees and contributions have been paid.

(e) If a licensee terminates or fails to renew a license granted under this section or any such license is cancelled, revoked or no longer in use, it shall be returned physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority and the licensing authority may then grant the license to a new applicant under the same conditions as specified in this act.

(f) All licenses granted under this act shall be issued within 3 years after the effective date of this act; provided, however, that a license originally granted within that time period may be granted to a new applicant under subsections (d) or (e) thereafter.

SECTION 2. This act shall take effect upon its passage.